

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT KANSAS CITY, KANSAS

SHELBY POWELL,	)	
	)	
Plaintiff,	)	
	)	
v.	)	Case No.
	)	
FARM BUREAU PROPERTY & CASUALTY	)	
INSURANCE COMPANY,	)	
	)	
Defendant.	)	
_____	)	

COMPLAINT

Plaintiff, by and through counsel, Brendan P. Lykins and Richard W. James of DeVaughn James Injury Lawyers, for her claims against the Defendant, alleges and states:

A. PARTIES

1. The Plaintiff is a citizen and resident of Kansas.
2. Defendant Farm Bureau Property and Casualty Insurance Company, is a stock, fire & casualty insurance companies incorporated in the State of Iowa with its principal place of business in Iowa. It may be served through the Kansas Insurance Commissioner at 1300 SW Arrowhead Rd., Topeka, KS 66604.

B. JURISDICTION AND VENUE

3. This Court has proper jurisdiction and venue over the parties and subject matter.
4. Venue is proper in the Kansas City division of the Kansas Federal District Court.
5. This action is brought pursuant to 28 U.S.C. § 1332, in that the amount of controversy exceeds seventy-five thousand dollars (\$75,000.00) exclusive of interest and costs and on the basis of diversity of citizenship.

C. NATURE AND CAUSE OF ACTION

6. Plaintiff adopts and incorporates by reference paragraphs 1 through 5 of this Complaint as if fully set forth herein.
7. At all times relevant herein, Plaintiff was insured under an automobile liability policy with Defendant, policy #7729510, that contained underinsured motorist benefits in the amount of \$1,000,000.00.
8. On April 4, 2019, in Topeka, Shawnee County, Kansas, underinsured motorist Staci Hall, negligently collided with a vehicle in which Plaintiff was a driver.
9. Specifically, the underinsured motorist tortfeasor was careless and negligent as follows:
 - a. Inattentive operation of a motor vehicle;
 - b. Failure to maintain a proper lookout;
 - c. Failure to drive with reasonable care;
 - d. Failure to give warning;
 - e. Failure to take evasive action; and
 - f. Careless driving.
10. The underinsured motorist's liability insurance company tendered its liability limits of \$100,000.00. Plaintiff complied with all conditions precedent as required by K.S.A. 40-284(f) and provided Defendant with appropriate documentation and notices.
11. Plaintiff provided Defendant with a time-limited settlement demand on or about October 8, 2021, for the underinsured motorist policy limits coverage available under policy #7729510.
12. On November 30, 2021, Defendant granted Plaintiff permission to accept the tortfeasor carrier's policy limits.
13. On November 30, 2021, Defendant provided a settlement offer of \$27,500 "new money" or

\$33,800 total value. The personal injury protection ('PIP') lien totals \$6,300.

14. Since the Defendant failed to make a good faith settlement, pursuant to 40-256, Defendant may be liable for Plaintiff's attorney fees.
15. The policies of insurance available to Plaintiff and this motor vehicle are policies given to insure property in this state against loss by fire, tornado, lightning or hail and, as such, the Plaintiff is allowed mandatory attorney fees pursuant to K.S.A. 40-908 if the Plaintiff obtains a judgment in excess of \$133,800.00.
16. No act or omission on the part of the Plaintiff caused or contributed to this incident or any of her resulting personal injuries or other damages pursuant to K.S.A. 60-258a.
17. As a result of the negligence of the underinsured motorist, Plaintiff sustained personal injuries. Plaintiff's damages include past medical expenses, future medical expenses, past and future economic damages and past and future non-economic damages including pain, suffering and mental anguish.

WHEREFORE, Plaintiffs requests judgment against Defendant for an amount in an amount in excess of SEVENTY-FIVE THOUSAND (\$75,000.00), together with the costs incurred herein; attorney fees under K.S.A. 40-256 and K.S.A. 40-908; pre-judgment interest and for such other and any further relief this Court deems fair, just and equitable.

Respectfully Submitted,

DeVaughn James Injury Lawyers

By: /s/ Brendan P. Lykins
Brendan P. Lykins, #26098
Richard W. James, #19822
3241 N Toben
Wichita, KS 67226
Tel: (316) 977-9999
Fax: (316) 425-0414

E-mail: blykins@devaughnjames.com
E-mail: rjames@devaughnjames.com
Attorneys for Plaintiff

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiff demands a pretrial conference and a trial by jury of eight (8) persons in this matter.

DESIGNATION OF PLACE OF TRIAL

Plaintiff designates Kansas City, Kansas as the place for trial in this matter.

By: /s/ Brendan P. Lykins
Brendan P. Lykins, #26098
Richard W. James, #19822
3241 N Toben
Wichita, KS 67226
Tel: (316) 977-9999
Fax: (316) 425-0414
E-mail: blykins@devaughnjames.com
E-mail: rjames@devaughnjames.com
Attorneys for Plaintiff